

		are reasonably calculated to lead to the discovery of relevant evidence regarding the alleged understaffing at the subject facility. (<i>Terminals Equip. Co. v. City & Cnty. of San Francisco</i> (1990) 221 Cal. App. 3d 234, 247 [“A party seeking discovery must identify a “particularized need for the documents at issue . . . or [] show how they would be relevant to the complaint or calculated to lead to the discovery of relevant evidence.”].) Accordingly, the Motion is denied as to RFP No. 21. RFP No. 22 states: Please provide all DOCUMENTS exchanged between YOU and any named defendant in this action, or anyone acting on their behalf, during the time period of February 19, 2022, through February 19, 2026 which references, in whatsoever manner, the census in the FACILITY. Similar to RFP No. 21, this discovery request is overbroad as it seeks all documents exchanged by Defendants that reference in any manner the census at the facility. Plaintiff could simply request the census itself should there be a need for the census data for the facility. Thus, the Motion is also denied as to RFP No. 22. Plaintiff’s request for monetary sanctions is DENIED. Moving party is ordered to give notice of this ruling.
11	30-2026-01558254 Santillan vs. Mil-Spec Heat Treating Inc.	Defendant Co-Advantage Resources, Inc.’s (“CARI”) Demurrer to Plaintiff Ruben Santillan’s (“Plaintiff”) First Amended Complaint (“FAC”) is OVERRULED. IT IS ORDERED THAT, within fourteen (14) days of this ruling, CARI shall file and serve an Answer to Plaintiff’s FAC. As a threshold matter, Plaintiff argues that the demurrer is untimely as it was not filed within thirty days of CARI being served with the FAC. (CCP § 430.40(a) [“A person against whom a complaint or cross-complaint has been filed may, within 30 days after service of the complaint or cross-complaint, demur to the complaint or cross-complaint.”].) CARI filed the instant Demurrer on August 19, 2026, which is 103 days after it was served with the FAC. Whether to consider an untimely demurrer is within the court’s discretion. (<i>McAllister v. Cnty. of Monterey</i> (2007) 147 Cal. App. 4th 253, 281–82 [“There is no absolute right to have a pleading stricken for lack of timeliness in filing where no question of jurisdiction is involved, and where, as here, the late filing was a mere irregularity [citation]; the granting or denial of the motion is a matter which lies within the discretion of the court.”].) In the interests of judicial efficiency, the court

		exercises its discretion to consider the untimely demurrer on its merits as there was no prejudice to Plaintiff by the delay (costs for simply opposing the demurrer does not constitute prejudice) and Plaintiff was able to substantively oppose the demurrer. CARI demurs to the FAC on the grounds that the FAC purportedly fails to allege sufficient facts against CARI specifically to show its liability for the wage and hour claims asserted against it. CARI contends that there are insufficient allegations to show its liability as a joint employer with, or alter ego of, Defendant Mil-Spec Heat Treating Inc. (“MSHTI”). CARI also objects to the FAC as uncertain because Plaintiff’s allegations are asserted against Defendants collectively, rather than identifying each Defendant’s specific conduct with respect to each claim. As relevant to CARI, Plaintiff alleges the following in the FAC: • Plaintiff is informed and believes and based thereon alleges that CO-ADVANTAGE is a privately-held corporation that is also a labor contractor within the meaning of Labor Code section 2810.3 that provides workers to MIL-SPEC for the purpose of performing work for MIL-SPEC, whether directly hired by MIL-SPEC, working under the heading of a professional employer organization, or placed to work at MIL-SPEC locations in California by CO-ADVANTAGE. At all relevant times herein, defendant CO-ADVANTAGE employed Plaintiff and similarly situated employees within the State of California. (FAC ¶ 4 [emphasis added].) • Plaintiff is informed and believes, and based thereon alleges, that each defendant acted in all respects pertinent to this action, as the agent of the other defendant(s), carried out a joint scheme, business plan or policy in all respects pertinent hereto, and the acts of each defendant are legally attributable to the other defendants. Whenever, heretofore or hereinafter, reference is made to “Defendant”, it shall include MIL-SPEC, CO-ADVANTAGE, and any of their parents, subsidiaries, or affiliated companies within the State of California, as well as DOES 1 through 100 identified herein. (FAC ¶ 6.) • Plaintiff is informed and believes, and based thereon alleges, that at all times mentioned herein, each of the Defendants was the agent, principal, employee, employer, representative, joint venture or co-conspirator of each of the other defendants, either actually or ostensibly, and in
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		doing the things alleged herein acted within the course and scope of such agency, employment, joint venture, and conspiracy. (FAC ¶ 7.) • All of the acts and conduct described herein of each and every corporate and limited liability company defendant was duly authorized, ordered, and directed by the respective and collective defendant corporate and limited liability company employers, and the owners, officers, directors, members and management-level employees of said corporate and limited liability company employers. In addition thereto, said corporate and limited liability company employers participated in the aforementioned acts and conduct of their said employees, agents, and representatives, and each of them; and upon completion of the aforesaid acts and conduct of said corporate and limited liability company employees, agents, and representatives, the defendant corporation and limited liability company respectively and collectively ratified, accepted the benefits of, condoned, lauded, acquiesced, authorized, and otherwise approved of each and all of the said acts and conduct of the aforementioned corporate and limited liability company employees, agents and representatives. (FAC ¶ 8.) • Plaintiff is informed and believes, and based thereon allege, that there exists such a unity of interest and ownership between Defendants, and each of them, that their individuality and separateness have ceased to exist. (FAC ¶ 9.) • The Alter Ego Defendants are completely dominated and controlled by the Individual Defendants who personally committed the wrongful and illegal acts and violated the laws as set forth in this Complaint, and who has hidden and currently hide behind the Alter Ego Defendants to perpetrate frauds, circumvent statutes, or accomplish some other wrongful or inequitable purpose[.] (FAC ¶ 10(A).) • The Individual Defendants derive actual and significant monetary benefits by and through the Alter Ego Defendants' unlawful conduct, and by using the Alter Ego Defendants as the funding source for the Individual Defendants' own personal expenditures[.] (FAC ¶ 10(B).) • Plaintiff is informed and believes and thereon alleges that the Individual Defendants and the Alter Ego Defendants, while really one and the same, were segregated to appear as though separate and distinct for purposes of perpetrating a fraud, circumventing a statute, or
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		accomplishing some other wrongful or inequitable purpose[.] (FAC ¶ 10(C).) • Plaintiff is informed and believes and thereon alleges that the business affairs of the Individual Defendants and the Alter Ego Defendants are, and at all relevant times mentioned herein were, so mixed and intermingled that the same cannot reasonably be segregated, and the same are inextricable confusion. The Alter Ego Defendants are, and at all relevant times mentioned herein were, used by the Individual Defendants as mere shells and conduits for the conduct of certain of their, and each of their affairs. The Alter Ego Defendants are, and at all relevant times mentioned herein were, the alter egos of the Individual Defendants[.] (FAC ¶ 10(D).) • The recognition of the separate existence of the Individual Defendants and the Alter Ego Defendants would promote injustice insofar that it would permit defendants to insulate themselves from liability to Plaintiff for violations of the Civil Code, Labor Code, and other statutory violations. The corporate existence of these defendants should thus be disregarded in equity and for the ends of justice because such disregard is necessary to avoid fraud and injustice to Plaintiff herein[.] (FAC ¶ 10(E).) • Accordingly, the Alter Ego Defendants constitute the alter ego of the Individual Defendants (and vice versa), and the fiction of their separate corporate existence must be disregarded[.] (FAC ¶ 10(F).) • As a result of the aforementioned facts, among others, Plaintiff is informed and believes, and based thereon alleges, that the Individual Defendants, the Alter Ego Defendants, and each of them, are joint employers by virtue of a joint enterprise, and that Plaintiff was an employee of the Alter Ego Defendants and the Individual Defendants. Plaintiff performed services for each and every defendant, and to the mutual benefit of all defendants, and all defendants shared control of Plaintiff, either directly or indirectly, and in the manner in which defendants’ business was and is conducted. (FAC ¶ 11 [emphasis added].) The court notes that Plaintiff alleges that CARI is a labor contractor, and under the Labor Code “[a] client employer shall share with a labor contractor all civil legal responsibility and civil liability for all workers supplied by that labor contractor . . .” (Cal. Lab. Code § 2810.3(b).) “A demurrer must dispose of an
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	entire cause of action to be sustained.” (<i>Fremont Indem. Co. v. Fremont Gen. Corp.</i> (2007) 148 Cal. App. 4th 97, 119.) CARI failed to address this theory of liability in its opening papers and provides no authority showing that Plaintiff’s allegations are inadequate under this theory of liability. The court finds that Plaintiff has adequately alleged ultimate facts to put CARI on notice as to the claims against it under theories of liability as a joint employer and/or alter ego of MSHTI, and/or as a labor contractor under the Labor Code. “Because one of the purposes of a complaint is to apprise the defendant of the basis on which the plaintiff seeks recovery, the complaint should set forth the ultimate facts constituting the cause of action and need not set forth the evidence by which the plaintiff proposes to prove those facts.” (<i>Prue v. Brady Co./San Diego, Inc.</i> (2015) 242 Cal. App. 4th 1367, 1376.) Ultimate fact “is a slippery term, but in general it refers to a core fact, such as an element of a claim or defense, without which the claim or defense must fail.” (<i>Yield Dynamics, Inc. v. TEA Sys. Corp.</i> (2007) 154 Cal. App. 4th 547, 559.) A complaint “is adequate so long as it appries the defendant of the factual basis for the claim.” (<i>Prue</i>, 242 Cal. App. 4th at 1376.) To the extent CARI disputes the facts alleged or dispute its liability for each of the alleged claims based on facts outside of the FAC, that is a challenge as to the merits of Plaintiff’s claims, not the adequacy of the pleadings. CARI cannot rely upon facts regarding its alleged business operations and services which are not judicially noticeable to attack the FAC. “A demurrer tests the legal sufficiency of the factual allegations in a complaint.” (<i>Redfearn v. Trader Joe’s Co.</i> (2018) 20 Cal. App. 5th 989, 996.) The Court assumes “the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken.” (<i>Id.</i>) “Because the demurrer tests the pleading alone, and not the evidence or other extrinsic matters, it lies only where the defects appear on the face of the pleading.” (<i>S. Pac. Land Co. v. Westlake Farms, Inc.</i> (1987) 188 Cal. App. 3d 807, 817.) A party “cannot validly challenge the complaint based on facts that are not alleged in the complaint or judicially noticeable.” (<i>Hahn v. Mirda</i> (2007) 147 Cal. App. 4th 740, 747.) With respect to the alter ego and joint employment theories of liability, CARI’s demurrer relies primarily on cases that evaluated the employment relationship at the merits stage of litigation based on evidence concerning the employment relationship. Those cases are inapplicable at the demurrer stage.
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	The only relevant cases cited by CARI regarding adequacy of the pleadings are wholly distinguishable as those complaints either contained no alter ego allegations at all or alleged facts that made clear that there was no employment relationship between the defendant the plaintiff. (<i>Goonewardene v. ADP, LLC</i> (2016) 5 Cal. App. 5th 154, 166 [“[T]he claims fail for want of sufficient allegations establishing an employee-employer relationship between appellant and [payroll services provider] ADP.”]; <i>Leek v. Cooper</i> (2011) 194 Cal. App. 4th 399, 414 [affirming denial of leave to amend when there was no alter ego allegations in existing complaint and no evidence of any inequitable result under the alter ego theory of liability].) Unlike the cases cited by CARI, the FAC here alleges multiple facts concerning alter ego liability, and asserts that CARI was a joint employer of Plaintiff due to the alter ego allegations and alleged joint enterprise between the two named Defendants. The court also finds no merit to CARI’s contention that the allegations are uncertain because they are collectively asserted against all Defendants or because they rely upon alternative theories of liability. CARI also fails to identify why each cause of action is inadequately pled. Instead, CARI argues that the facts are not specific enough as to CARI and are, therefore, uncertain. “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (<i>Khoury v. Maly’s of California, Inc.</i> (1993) 14 Cal. App. 4th 612, 616.) “Where the exact nature of the facts is in doubt, or where the exact legal nature of plaintiff’s right and defendant’s liability depend on facts not well known to the plaintiff, the pleading may properly set forth alternative theories in varied and inconsistent counts.” (<i>Rader Co. v. Stone</i> (1986) 178 Cal. App. 3d 10, 29.) Plaintiff has alleged sufficient facts to assert that CARI is liable for each cause of action either as a labor contractor, a joint employer, and/or an alter ego of MSHTI. Any further clarification of facts may be obtained through discovery. Based on the foregoing, the court overrules CARI’s Demurrer to Plaintiff’s FAC. Defendant Co-Advantage Resources, Inc. is ordered to give notice of this ruling.
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